

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.

Civil Code section 1794 does not define “prevailing party.” Courts thus “adopt a pragmatic approach, determining prevailing party status based on which party succeeded on a practical level. [Citations.] Under that approach, the court exercises its discretion to determine the prevailing party by analyzing which party realized its litigation objectives.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 150.) Simply obtaining a net monetary recovery does not necessarily render a party the prevailing party. (*See MacQuiddy v. Mercedes-Benz USA, LLC* (2015) 233 Cal.App.4th 1036, 1047.)

Here, when taking a pragmatic approach to determine which party realized its litigation objectives, the court determines plaintiffs are not the prevailing parties. Their litigation objectives were to rescind their contract for the vehicle, restitution, damages, prejudgment interest, attorney’s fees and costs, and a civil penalty of two times their damages. Notably, plaintiffs did not seek repurchase of their vehicle in the complaint. The settlement between the parties and the communications thereto, attached as Exhibits 1 and 2 to Chad David’s declaration, confirms the recovery received was repurchasing the vehicle, reimbursing plaintiffs for their down payment, offsets, and other incidental costs. These were not litigation objectives.

Additionally, the court would be remiss to not mention that defendant initiated the repurchase process before the complaint was filed, before the complaint was served, and after it answered the complaint. However, the delay appears attributable to plaintiffs and their counsel of record for not providing the documents defendant requested to finalize the repurchase process. (*Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 881.) So, the complaint was not filed to secure a repurchase of their vehicle; it appears the complaint was filed “to recover the civil penalty and/or attorney fees.” (*Dominguez v. American Suzuki Motor Corp.* (2008) 160 Cal.App.4th 53, 59.)

Accordingly, plaintiff’s motion is denied.

9. S-CV-0057320 FLANAGAN, SEAN v. MAYHEW, LYNN

Defendant Psomas Inc.’s Demurrer to the Complaint

Defendant demurs to the first cause of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action for personal injury/negligence. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described

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conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant specifically demurs to plaintiff’s first cause of action on the grounds plaintiff has not filed a certificate of merit. Code of Civil Procedure section 411.35 requires in professional negligence actions against a person holding a valid land surveyor’s license, as here, for plaintiff to file and serve a certificate of merit within 60 days after filing a complaint. (Code Civ. Proc., § 411.35, subds. (a)–(b).)

Here, when taking the factual allegations in the complaint as true and reviewing the court record, there are insufficient allegations that plaintiff has timely filed and served a certificate of merit. Accordingly, defendant’s demurrer is sustained with leave to amend. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360.)

Plaintiff shall file and serve an amended complaint on or before **August 24, 2026**.

10. S-CV-0057330 IN RE THE PETITION OF VARDANYAN, SARA

Petition for Approval of Minor’s Compromise Claim (Lena Eliza Avakyan)

The petition for approval of minor’s compromise claim is denied without prejudice. There is insufficient evidence of good cause alleged for the entirety of the recovery to be awarded to the minor’s mother.

11. S-CV-0057560 DESJARLAIS, RICKY v. CUMMING MANAGEMENT

Defendants’ Demurrer to Plaintiff’s Complaint

Defendants demur to all six causes of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the six causes of action alleged. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no